

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: May 11, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER DENYING MOTION TO AMEND COMPLAINT

This matter came on for consideration of: Complainant Cool Living LLC's Motion to Amend Complaint and proposed Amended Complaint filed April 30, 2026 (Dkt. 17); and Respondents' Opposition to Complainant's Motion to Amend Complaint filed by ALPI U.S.A., Inc. and ALPI Air & Sea A/S. For the reasons set forth below, the motion is **DENIED**.

In support of its motion, Complainant states that the proposed amendment merely clarifies the allegations and parties identified in the complaint, does not broaden the issues, will not prejudice Respondents, and is necessary due to the affirmative defenses raised by Respondents and information revealed during discovery. Specifically, Complainant seeks to add Cool Living Oy as a co-Complainant, include additional damages, cure improper citations to civil penalties, and clarify certain allegations revealed through discovery. The allegations Complainant seeks to clarify include that: Respondents are unlawfully exercising liens over cargo held in Denmark and New Jersey, Complainant seeks a cease and desist order barring Respondents' wrongful withholding of cargo, and Complainant demands payment of amounts wrongfully invoiced.

In its opposition, Respondents state that the proposed amendment broadens the issues in dispute, is prejudicial, is based on information known to Complainant when the complaint was filed, and will require additional discovery that will delay the proceeding beyond deadlines set in the scheduling order. Respondents further state that the motion is procedurally defective because Complainant failed to confer in advance of filing the motion in accordance with 46 C.F.R. § 592.71(a). Respondents request that the motion be denied or, in the alternative, that the proceeding be stayed pending resolution of a parallel proceeding pending in New York.

Commission Rule 66(a) provides in pertinent part that amendments "will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issues, without opportunity to reply to such amended pleading and to prepare for the broadened issues." 46 C.F.R. § 502.66(a).

The Commission's Rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint. However, Commission Rule 12 provides that "for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), "a party may amend its pleading once as a matter of course" within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with the opposing party's written consent or leave of court, which should be freely given when justice so requires. F.R.C.P. 15(a)(2). "Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments." *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted); *see also Foman v. Davis*, 371 U.S. 178, 182 (1962).

As an initial matter, the motion is procedurally defective. Pursuant to 46 C.F.R. § 502.71(a), before a party files a non-dispositive motion, the parties must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought, and the moving party "must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed." 46 C.F.R. § 502.71(a). Complainant's motion does not indicate that such a discussion occurred or whether Respondents oppose the requested relief. This alone constitutes sufficient grounds to deny the motion.

Additionally, Complainant fails to demonstrate good cause to amend the complaint at this relatively advanced stage of the proceeding. The complaint was filed December 4, 2025 (Dkt. 1). Respondents' answer asserting 20 affirmative defenses was filed January 14, 2026 (Dkt. 12.) Pursuant to the scheduling orders dated January 30, 2026, and March 2, 2026, the deadline to complete the initial document production expired April 30, 2026, and the close of discovery is set for June 13, 2026, with briefing scheduled thereafter (Dkt. 14 and 16.) Rather than identifying the new information obtained through discovery and the date it was obtained in order to establish due diligence in requesting leave to amend promptly upon discovery, Complainant merely makes a general assertion that amendment is appropriate based on unspecified new information obtained during the course of discovery. The same is true with respect to Complainant's allegation that amendment is needed based on unspecified affirmative defenses raised in the answer filed more than three months ago. These general assertions fail to satisfy Complainant's burden to establish good cause for amending its complaint more than four months after it was originally filed and after the deadline established to complete the initial document production has expired.

Moreover, the proposed amendment broadens the issues by adding a new party, namely Cool Living Oy, an entity described in paragraphs 8, 46, 54 of the complaint as a Finnish furniture retailer that was improperly invoiced by ALPI Logistics Inc. causing reputational harm, and a new issue, namely the existence of cargo lien holds in New Jersey. The express references to Cool Living Oy in the complaint suggest that Complainant knew or should have known of any claims associated with that entity when the complaint was originally filed. The same is true for the proposed amendment to include unlawfully exercising liens over cargo held in New Jersey in addition to Denmark as alleged in the original complaint. Complainant does not state in its

motion that it was unaware when the complaint was filed that Respondents were unlawfully exercising liens over cargo held in New Jersey, and logic suggests that this fact would have been known to Complainant at that time. For these reasons, the record supports a finding that Complainant seeks not to add previously unknown information but rather to add information that was available at the time of the original filing but not included.

The proposed amendment would, *inter alia*, add a new entity as a co-Complainant and New Jersey cargo hold claims in addition to the Denmark cargo hold claims originally alleged. These additions would necessarily require the parties to conduct additional discovery beyond the deadlines established in the scheduling order and extension of the current schedule to allow time for a responsive pleading to be filed. Given that Cool Living Oy was expressly referenced in the complaint, there is no reasonable basis to find that it could not have been included as a party in the initial pleading. Similarly, there is no reasonable basis to find that Complainant was unaware of the New Jersey cargo holds when the complaint was originally filed. For this reason, I find that Complainant has failed to establish that it acted with due diligence to promptly seek amendment after the discovery of information not available to it at the time the original complaint was filed. Accordingly, I find that the motion is appropriately denied based on Complainant's undue delay. I also find that the proposed amendment is prejudicial to Respondents because it would require them to conduct additional discovery and incur the associated costs arising from Complainant's failure to act with due diligence in promptly seeking to amend its complaint.

Because the motion does not contain the required statement indicating that a good faith discussion occurred and whether Respondents oppose the requested relief, because amendment would cause undue delay, and because amendment at this relatively late stage would be prejudicial to Respondents, the motion is **DENIED**.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S
Date: 2026.05.11 12:41:10 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge